

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, JULY 08, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**MELISSA LEITZKE v. CITY OF VALLEJO
Case No. CU23-02170**

TENTATIVE RULING:

Plaintiff's Motion for Leave to File Amended Complaint; Defendant's Motion for Leave to File Amended Answer

Plaintiff MELISSA LEITZKE moves for leave to file a supplemental first amended complaint in her action presently alleging retaliation, failure to prevent harassment or discrimination, and gender discrimination, all in violation of the Fair Employment and Housing Act (the "FEHA") against Defendant CITY OF VALLEJO. Defendant moves for leave to file an amended answer. Both parties declare that they have recently come to understand the legal significance of facts arising after the filing of the operative pleadings and thus now move to amend.

Plaintiff's motion for leave to amend the complaint is DENIED. CITY's motion for leave to amend its answer is GRANTED.

A trial court may, in its discretion, allow amendments to pleadings "in furtherance of justice." (Code Civ. Proc., § 473, subd. (a)(1).) The court has wide discretion but repeatedly stated policy encourages liberality in allowing amendment. (See *Frost v. Witter* (1901) 132 Cal. 421, 424; *Cardenas v. Ellston* (1968) 259 Cal.App.2d 232; *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) Indeed, if the motion to amend is timely made and granting the motion *will not prejudice the opposing party*, it is error to refuse permission to amend where the refusal also results in a party being denied the right to assert a meritorious action or defense. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Plaintiff seeks to add allegations concerning her return to work after ending administrative leave, a subsequent demotion and pay reduction, an arbitration award ordering reversal of the demotion with back pay, Defendant's refusal to implement the award, and Plaintiff's constructive termination from Defendant's employment. Defendant seeks to add the affirmative defense of after-acquired evidence based on Plaintiff's relocation to Minnesota during her employment with Defendant and the interaction of that relocation with Defendant's policies.

There is a significant difference between the proposed amendments in terms of prejudice imposed on the parties. Defendant's proposed amendment adds an affirmative defense concerning limitation of damages for Plaintiff's stated causes of action related to her being placed on administrative leave and demoted which can be presented to a jury and could not have been litigated by summary judgment. Plaintiff knew she moved to Minnesota in July 2024 and cannot be surprised by this defense.

By contrast, Plaintiff's proposed amendment seeks to add the new legal theory of constructive discharge. (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1252 [constructive discharge in violation of public policy gives rise to tort action].) Plaintiff's proposed amendment introduces numerous new facts and potential forms of recovery regarding wrongful termination to a case presently about other, non-termination forms of adverse employment action. Plaintiff's motion also comes subsequent to Defendant's motion for summary judgment directed at the operative version of the complaint. It is proper for a court to deny leave to amend when a request is made only after the filing of a motion for summary judgment even though the plaintiff had been aware of the facts underlying the proposed amendment because a motion for summary judgment is framed by the pleadings; thus it is unfair to allow a plaintiff to present a "moving target" after the defendant has mounted its summary judgment challenge to the previously existing complaint. (*Falcon v. Long Beach Genetics* (2014) 224 Cal.App.4th 1263, 1280.) Defendant cannot defend itself against new legal theories based on new facts at this point without continuance of the coming trial date and reopening of discovery and Defendant is not entitled to file multiple motions for summary judgment. A trial court's responsibilities under the Trial Court Delay Reduction Act also justify denying a tardy motion for leave to amend made after summary judgment and when the trial date is near. (Gov. Code, § 68600 et seq.; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2021) ¶ 10:51:12, pp. 10-12.) Plaintiff has known since July 2024 of her move to Minnesota and her use of various forms of leave until she ultimately resigned in October 2024.

The court finds that Plaintiff will not be prejudiced by granting leave to file an amended answer. Defendant's motion for leave to file an amended answer is granted.

The court finds that Defendant will be prejudiced by granting leave to file an amended complaint. Plaintiff's motion for leave to file a supplemental first amended complaint is denied.

TRIAL MANAGEMENT CONFERENCE AND MOTION TO BIFURCATE

Trial Management Conference – Tentative Rulings

The following are the tentative rulings in anticipation of the continued Trial Management Conference scheduled for July 8, 2026 at 9:00 a.m.

The court appreciates that TMC packets were filed before the court's final ruling on Defendant's motion for summary adjudication. The court will be focused on witnesses and exhibits that are relevant to the claim of retaliation. Accordingly, the parties should be prepared to address if the following witnesses continue to be necessary. Revised time estimates are needed.

<u>Plaintiff's Witness List:</u>	<u>Defendant's Witness List:</u>
Linda Daube	Linda Daube
Terrance Davis	Terrance Davis
Kevin Hickey	Kevin Hickey
Mike Malone	
Rachel Ferguson	
Jonathan Alberti	
Jerry Valenzuela	
James Rustice	
Matthew Keys	
Kevin Reustle	Kevin Reustle
Sean Googins	Sean Googins
Stephen Kay	Stephen Kay
Brian Gabriel	
Jason Goodner	
Dennis Martin	
	Kevin Brown
	Kyle Potter
	James Rustice
	Shannon Thompson
	Christopher Lujan
Rober	Robert Hoffman
	Ashlyn Clark
	Madeline Buitelaar

The court does not intend to allow either witness to call the arbitrator. The arbitrator's decision-making process is irrelevant.

Please bring original deposition transcripts to the trial management conference to lodge them with the courtroom clerk prior to trial.

A. Statement of the Case:

The court intends to provide the following statement to jurors:

Plaintiff Melisse Leitzke was a Captain with the City of Vallejo Fire Department. Plaintiff alleges that during her employment she was retaliated against after she complained of gender discrimination to her employer. Defendant City of Vallejo denies that Plaintiff was subjected to retaliation based upon her complaint of gender discrimination.

B. Plaintiff's Trial Management Statement and Motions in Limine

The court reviewed Plaintiff's 185-page Trial Management Statement filed June 9, 2026 and Supplemental Trial Management Statement filed June 24, 2026.

1. **Offer of Proof as to Witnesses:** The offer of proof shows a large number of witnesses and is inconsistent with a time estimate of 6 days. Many witnesses appear to be solely related to the gender discrimination claim which is no longer proceeding to trial. See discussion above. Be prepared to address.
2. **Plaintiff's Exhibit List:** 325 exhibits is excessive and will cause this trial to triple in length. (Evid. Code, § 352.) Please revise your exhibit list to focus on the exhibits you actually intend to move into evidence. Please remember your list is used by the courtroom clerk. Upon submission to the jury, you will be required to provide 12 copies of the admitted exhibits for consideration by the jury during deliberations so each juror has a copy. Please meet and confer with the defense to identify any joint exhibits the parties stipulate may be admitted into evidence. Plaintiff should not list entire depositions as exhibits but only the exhibits she intends to move into evidence. Depositions are largely not admitted as evidence but used to refresh witness memory or impeach and are typically read into the record. Given the volume of proposed exhibits, Plaintiff should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror's use during jury deliberations.

3. Plaintiff's Motions In Limine

1. **MIL 1:** Exclude witnesses April Adams and Ronda Rivera as untimely designated PMKs. **DENIED.** The Third PMK deposition notice was overbroad. A PMK notice must identify examination topics with "reasonable particularity". (For example, paragraph 12 of the subpoena sought the PMK for all investigations of firefighter misconduct during the past 20 years.) But, CITY had duty to present its best PMK(s) in response to each category of the subpoena. PMK notices are typically used with organizations, corporations, or governmental agencies so that the deposition treats the entity as a single deponent but can secure basic institutional knowledge known or reasonably available to the organization. A PMK deposition is not a substitute for a percipient witness deposition.
2. **MIL 2:** Exclude rumor and hearsay testimony of Shannon Thompson. **GRANTED.**

C. Defendant's Trial Management Statement and Motions in Limine

The court reviewed Defendant's 436 page Trial Management filed on June 8, 2026.

1. **Offer of Proof as to Witnesses:** The offer of proof shows a large number of witnesses and is inconsistent with a time estimate of 6 days. Defendant's proposed time estimate of 68 hours of testimony equates to a minimum of 12 days without jury selection, instruction, arguments and deliberations. A large majority of witnesses appear directed towards the gender discrimination claim rather than the retaliation claim. See discussion above.
2. **Defendant's Exhibit List:** Please meet and confer to determine whether any of Defendant's 62 identified exhibits can be classified as joint exhibits and whether admission into evidence can be stipulated. Provide an updated list of joint or stipulated exhibits. (See Trial Management Order 7/2/25 section 5.a -parties to prepare a list of joint exhibits or exhibits parties stipulate may be admitted into evidence., p. 5.)
Given the volume of proposed exhibits, Defendant should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror's use during jury deliberations.
3. **Defendant's Motions in Limine:**

Defendant's MIL 1: Exclude propensity and character evidence related to items specified in Paragraph 1 of MIL1. **GRANTED IN PART.** The Chief is subject to impeachment on his own failure to follow fire department policy which led to an investigation and his resignation. However, this examination should not be lengthy due to 352 concerns.

Defendant's MIL2: Exclude evidence of media coverage. **GRANTED.**

Defendant's MIL3: Exclude evidence related to an alleged November 2024 constructive discharge. **GRANTED**

Defendant's MIL 4: Exclude evidence of allegations prior to June 12, 2020. **GRANTED.**

Defendant's MIL 5: Exclude evidence not produced in discovery including undisclosed expert opinions. **GRANTED.**

Defendant's MIL 6: Exclude unqualified layperson opinion regarding Plaintiff's damages. **GRANTED IN PART AND DENIED IN PART.** Plaintiff is not qualified to testify as a layperson regarding losses to her PERS calculation, but can testify generally as to her salary and overtime as a firefighter employed by Defendant and her experience applying to or working with other fire departments. Plaintiff and her spouse can testify generally as to her emotional state, treatment

she has participated in, and symptoms but cannot testify as to a medical diagnoses or prognosis.

Defendant's MIL 7: Exclude evidence regarding CITY discovery efforts. **GRANTED.**

Defendant's MIL 8: GRANTED IN PART. All evidence must have a foundation and hearsay is inadmissible. Reserved as trial objection.

Defendant's MIL 9: Exclude evidence of touching by apprentice. **GRANTED.** The evidence is that the unwanted touching by the apprentice was not gender related but was directed towards both male and female employees. Plaintiff supervised the apprentice. The conduct is not related to FEHA and was not objectively the basis of protected activity by Plaintiff.

Defendant's MIL 10: Exclude evidence of failure to investigate NIOSH 5 Warnings. **GRANTED.**

4. Defendant's Motion to Bifurcate

Defendant's motion to bifurcate liability from damages is GRANTED. Plaintiff may still testify in her case in chief as to her injuries and elicit testimony about the difference in pay on administrative leave versus on duty in order to establish the elements of her claim, but evidence monetizing those injuries, including testimony of experts, is reserved to the damages phase.

5. Objections to Untimely Supplemental Witness List: CITY's objections are **OVERRULED.**

6. Proposed Jury Instructions and Verdict Form:

The court reserves over proposed jury instructions and verdict forms. Please meet and confer regarding retention of a single court reporter between the parties for each day of trial. The court reporter must be physically present in the courtroom and cannot appear via Zoom. The court reporter must be available during jury deliberations for read- back or have prepared a final transcript. An order appointing the reporter pro tem shall be submitted in advance to ensure the reporter is available and qualified. The court will not continue the case due to the absence of a reporter.

Parties shall make arrangements with the courtroom clerk to pre-mark exhibits and to lodge all originals of transcripts prior to trial.

Please reduce all stipulations to writing. The stipulations will be marked as a court exhibit and deemed admitted. Parties to notify the court when they wish the court to read the stipulation to the jury.
